

## 25SMCV00583 25SMCV00583

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-15

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Tentative

Ruling

Jose

Escobar Guzman v. City of Los Angeles, Case no. 25SMCV00583

Defendant's

Motion to Compel Compliance with Deposition Subpoena

Hearing

Date: September 15, 2026

Background

Plaintiffs

Jose Escobar Guzman and David Orozco sue Defendants City of Los Angeles and State of California for negligence and premises liability arising from a motorcycle accident. Plaintiffs allege that Defendants' failure to maintain the pacific coast highway caused them to crash after hitting a large pothole on February 24, 2024. (Complaint, p. 4.)

On

February 5, 2025, Plaintiffs filed the complaint.

On April

17, 2025, The City filed a cross-complaint against the California Department of Transportation for indemnity.

On April

29, 2025, Plaintiffs dismissed the City.

On March

26, 2026, the Department of Transportation moved to compel Crenshaw Chiropractic's custodian of records to produce documents in compliance with a subpoena served on or about February 9, 2026. As of September 11, 2026, this motion is unopposed.

Motion

to Compel Compliance with Subpoena

Code of

Civil Procedure § 1987.1, subdivision (a) states, "[i]f a subpoena requires . . . the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a), italics added.) Subdivision (b) of Section 1987.1 states that "a party" may bring a motion to compel compliance with a subpoena pursuant to subdivision (a). (Id., § 1987.1, subd. (b).)

"[I]n

making an order pursuant to motion made under . . . Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonably attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

Discussion

The

Department of Transportation seeks an order from the Court compelling Crenshaw

Chiropractic's Custodian of Records to comply with a subpoena for the production of business records.

On

February 9, 2026 the Department of Transportation served Crenshaw Chiropractic with a subpoena for the production of business records. (Rhoads Decl., ¶ 3.) The deposition subpoena seeks Plaintiff's medical records "reflecting or relating to treatment or diagnosis of medical conditions to patient's head, neck, left arm, left shoulder, left leg, chest, and back, including medical and office records and reports, all doctors' and nurses' notes, findings, medical histories, physical examination files, consultation reports, billing documents, x-ray reports, which pertain to the care and treatment prescribed, recommended and/or given, physical therapy treatment, trauma treatment and emergency room." (Id., Ex. A.) Neither Plaintiffs nor Crenshaw Chiropractic has not objected to the deposition subpoena, nor have they otherwise provided the records requested by Defendant.

Here, the

Court find good cause to compel Crenshaw Chiropractic's compliance with the deposition subpoena. First, Defendant has submitted evidence demonstrating that both Crenshaw Chiropractic and Plaintiffs were served with copies of the deposition subpoena on February 9, 2026. (Rhoads Decl., ¶ 3, Exhibit 1.) Second, Defendant attests that neither Crenshaw Chiropractic nor Plaintiff have objected to the deposition subpoena or provided responsive documents. (Id. at ¶ 5.) Third, in compliance with California Rules of Court, rule 3.1346, Defendant has properly personally served Crenshaw Chiropractic with a copy of the present Motion. (See Declaration of Service; Cal. Rules of Court, rule 3.1346.) Lastly, the Court finds that the documents sought by the deposition subpoena are relevant to the litigation because Plaintiffs request compensation for physical injuries. Based on the foregoing, the Court finds good cause to compel Crenshaw Chiropractic's compliance with the deposition subpoena.

Further,

the Court finds merit to Defendant's request for monetary sanctions against Chrenshaw Chiropractic. The Court awards monetary sanctions against Fallas Paredes in the amount of \$2,175. (Rhoads Decl., ¶ 11-13.)

Conclusion

The

Department of Transportation's Motion to Compel Compliance with Subpoena is GRANTED. The Department of Transportation is granted \$2,175 in sanctions.